LAND LEASE AGREEMENT

(Parking / Yard Use)

This Land Lease Agreement ("**Agreement**") is entered into as of _____, by and between:

Landlord:

San Antonio Aquarium LLC

Tenant:

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1. Premises

Landlord hereby leases to Tenant a portion of Landlord's real property consisting of approximately _____ **square feet (±)**, commonly known as the **rear parking / yard area**, as depicted on **Exhibit A** attached hereto, and the fenced portion of the yard, as depicted in Exhibit B (the "**Premises**").

Tenant acknowledges that the Premises is leased **for use purposes only**, and that the stated square footage is approximate and not determinative of rent.

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2. Permitted Use

The Premises shall be used **solely for vehicle parking, vehicle storage, and related incidental uses** in connection with Tenant's lawful commercial operations as an automobile dealership ("Intended Use").

No permanent structures, foundations, or buildings may be constructed on the Premises without Landlord's prior written consent.

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3. Term

This Agreement shall commence on July 1, 2026 and shall continue on a **month-to-month basis**.

Either party may terminate this Agreement **for any reason** upon **ninty(90) days' prior written notice**.

This structure is expressly intended to preserve flexibility for both parties, including the possibility of sale, redevelopment, or reconfiguration of the property.

In the event the Landlord elects to terminate the lease, the Tenant has the right to continue to lease the fenced portion of the yard, outlined in Exhibit B, for an amount of $500/month, unless otherwise purchased by the Property Owner.

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4. Rent

Tenant shall pay Landlord rent as follows:

- **Base Rent:** $2,500 per month
- **Escalation:** Four percent (4%) annually, applied on each anniversary of the commencement date
- **Payment Timing:** Rent shall be payable in advance on the first day of each month

Late payments shall accrue interest at **one percent (1.0%) per month**.

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5. Survey Acknowledgment and Boundary Agreement

Tenant acknowledges and agrees that:

1. The Premises **may include areas beyond the recorded legal boundary line** of Landlord's property due to historical fencing, grading, or legacy use patterns;
2. Tenant's occupancy of the Premises is **permissive only** and shall not create any ownership, easement, prescriptive, or adverse possession rights;
3. No payment of rent, duration of use, or improvement shall be deemed recognition of a boundary adjustment or title claim.

This Section shall survive termination of this Agreement.

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6. Fence and Improvements

Existing fencing may remain in place during Tenant's occupancy **by mutual understanding**.

All improvements, temporary installations, or alterations made by Tenant shall remain **Tenant's responsibility** and **may be required to be removed upon termination**, unless otherwise agreed in writing by Landlord.

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7. Maintenance, Liability, and Indemnification

Tenant shall:

- Maintain the Premises in a clean and safe condition;
- Bear all costs related to its use and operations on the Premises;
- Indemnify, defend, and hold harmless Landlord from any and all claims, liabilities, damages, losses, or expenses arising from Tenant's occupancy or use of the Premises.

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8. No Purchase Rights

This Agreement does **not** grant Tenant any purchase option, right of first refusal, or right to negotiate purchase of the Premises or any portion of Landlord's property unless expressly set forth in a separate written agreement executed by Landlord.

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9. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the **State of Texas**.

SIGNATURES

Landlord:

San Antonio Aquarium LLC

By: _____

Name: _____

Title: _____

Date: _____

Tenant:

By: _____

Name: _____

Title: _____

Date: _____

Exhibit A

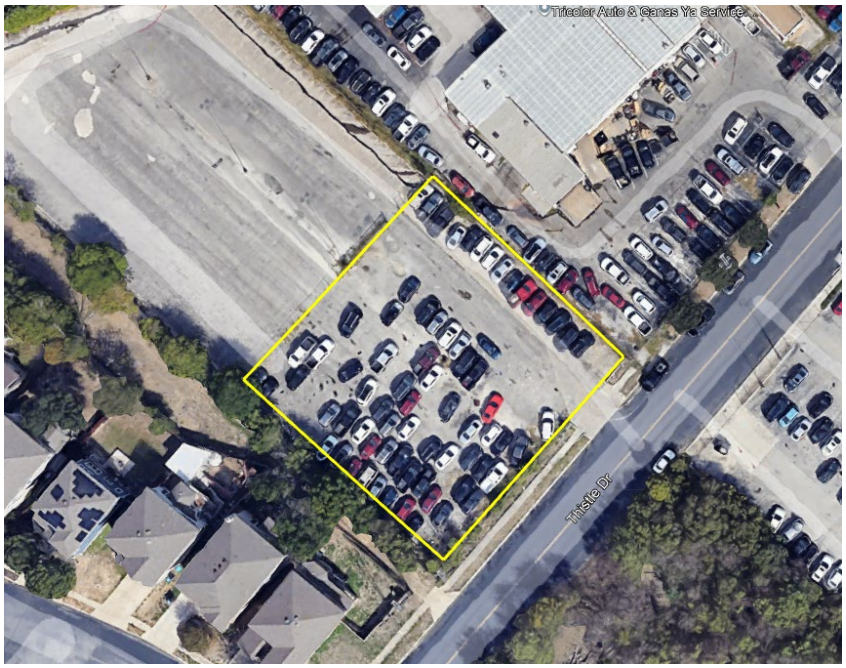
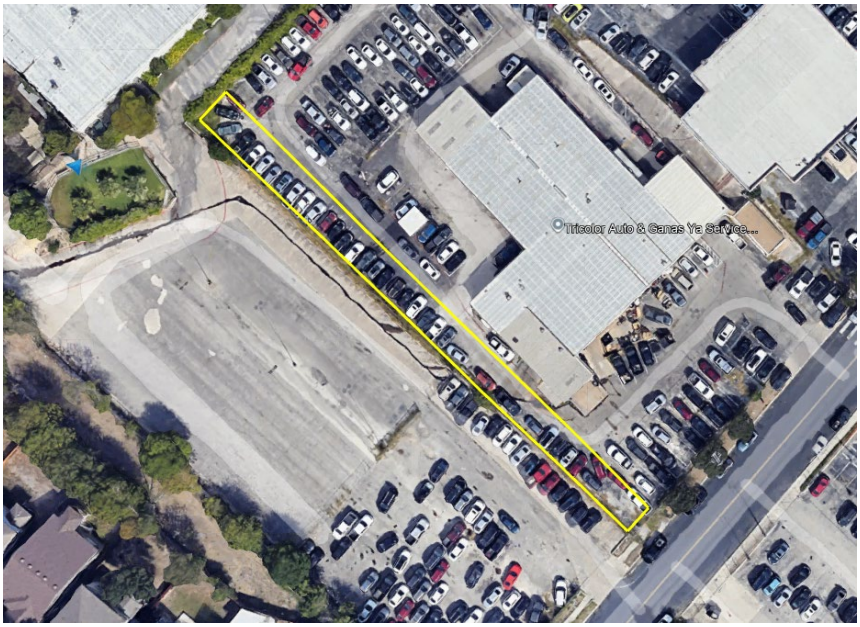
Exhibit B